

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 2388 OF 2012

Karnapholi Gas Distribution Company
Limited

---- Defendant-Petitioner

=Versus=

Anwara Begum and others

----Plaintiff–Opposite Parties

Mr. Md. Abdur Rahim, Advocate

----- For the Petitioner

Mohammed Faridul Islam

---- For the Opposite Party No. 1

Judgment on: 05.04.2018 and 08.04.2018

At the instance of the present defendant-petitioner, Karnapholi Gas Distribution Company Limited, this Rule has been issued calling upon the opposite party No. 1 to show cause as to why the impugned judgment and order dated 16.05.2012 passed by the learned Joint District Judge and Paribesh Adalat, Chittagong in Miscellaneous Appeal No. 262 of 2011 setting-aside the Order No. 4 dated 14.11.2011 passed by the learned Senior Assistant Judge, 1st Court, Chittagong in Other Suit No. 154 of 2011 rejecting the application for temporary injunction should not be set aside.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present opposite parties as the plaintiffs filed the Title Suit No.

154 of 2011 in the Court of the learned Senior Assistant Judge Court No. 1, Chittagong for a permanent injunction restraining from disconnecting gas supply without notice in the M/S “Hotel Salma”. The suit is pending for hearing. During the pendency of the suit the present opposite parties filed an application for temporary injunction from disconnecting the gas supply line. After hearing the parties the learned trial court rejected the application by his order dated 14.11.2011. Being aggrieved the present opposite parties as the appellants preferred the Miscellaneous Appeal No. 262 of 2011 in the court of learned District Judge which was heard by the learned Joint District Judge and Paribesh Adalat, Chittagong who allowed the appeal by his judgment and order dated 16.05.2012. This revisional application has been filed challenging the legality of the said impugned order and the Rule was issued thereupon.

Mr. Md. Abdur Rahim, the learned Advocate appearing for the petitioner submits that the present opposite parties were the owners of M/S “Hotel Salma” situated in 15, Rahamutunessa Road, Reajuddin Bazar, Police Station-Kotwali, Chittagong and they were continuous defaulters in payment of the monthly gas bills. Therefore, a team from the petitioner company went to disconnect the gas line but could not disconnect because of unlawful activities on the part of the present opposite parties. Despite the above facts, the learned appellate court without considering the contractual obligations of the consumers

allowed the temporary injunction thereby committed an error of law, thus, this court should interfere into the judgment and order.

Mr. Mohammed Faridul Islam, the learned Advocate for the opposite party No. 1 submits that the learned trial court committed an error of law by rejecting the prayer for temporary injunction however, the learned appellate courts after consideration of the evidence lawfully allowed the application but the present petitioner obtain the Rule by misleading the court, as such, the Rule should be discharged.

Considering the above submissions of the learned Advocates for the parties and also considering the revisional application filed by the present petitioners along with the annexures therein and also considering the supplementary affidavit, it appears that the present opposite parties as the plaintiffs filed the suit for permanent injunction restraining the present petitioner, a gas Company from disconnecting the gas line in the business establishment known as M/S “Hotel Salma” situated under Police Station-Kotwali, Chittagong. During the pendency of the said suit an application for temporary injunction was also filed for restraining the plaintiff from disconnecting the gas line. It further appears from the supplementary affidavit filed on 03.04.2018 that the present petitioners had to disconnect gas supply line on 16.09.2015 for non-payment of monthly gas bills in the compelling circumstances as the present opposite parties had been the continuous defaulters in payment of the gas bills consumed by the opposite parties hotel. On the other hand the learned Advocate for the

opposite parties contended that the plaintiff opposite party had been paying gas bill as per the bill provided by the present petitioner but because of some technical fault in the gas meter the present opposite parties made several requests to change the gas meter and finally served a legal notice on 23.10.2012 through an Advocate but there was no response from the present petitioner.

From the above given factual aspects, it appears to me that the present opposite parties have been running a hotel business and there was a gas connection. There are some disputes between the parties as to the payment and / or non-payment of gas bill which are to be decided by the learned trial court on merit at the time of disposal of the Other Class Suit No. 154 of 2011 pending before it. After considering all the documents before me, I am of the opinion that any interim order of temporary injunction would not provide any sufficient relief for settling the disputes between the parties. As there are question of facts to be decided as to continuation of gas connection and disconnection of gas connection in the business establishment owned by the present opposite parties. In view of the above, the judgment and order passed by the courts below regarding interim order of temporary injunction should be set aside in order to allow the trial court to decide finally as to the merit of the main suit. I am therefore inclined to dispose of the Rule.

Accordingly, I am inclined to dispose of the Rule.

In the result, the Rule is disposed of with the following directions.

The judgment and order dated 14.11.2011 passed by the learned Senior Assistant Judge, Court No. 1, Chittagong in Other Class Suit No. 154 rejecting the application for temporary injunction and also the judgment and order dated 16.05.2012 passed by the learned Joint District Judge, and Paribesh Adalat, Chittagong in Miscellaneous Appeal No. 262 of 2011 are hereby set aside.

The learned Senior Assistant Judge Court No. 1, Chittagong is hereby directed to conclude the hearing and dispose of the Other Class Suit No. 154 of 2011 within 6(six) months from the date of receipt of this judgment and order without allowing any unnecessary adjournment on the prayer of either of the parties as the learned Advocates appearing before this court committed not to seek any unnecessary adjournment.

In the mean time, the opposite parties are hereby directed to pay the arrear estimated bills to be given by the petitioner company until disposal of the suit which will be subject to adjustment as per decision of the trial court.

The interim order of stay upon the operation of the impugned judgment and order dated 16.05.2012 pending in the learned Joint District Judge and Paribesh Adalat, Chittagong in Miscellaneous Appeal No. 262 of 201 is hereby recalled and vacated.

The Section is directed to communicate this judgment and order to the concern court immediately.